

Oriental Insurance Co. Ltd vs Sreedevi on 4 December, 2025

MACA Nos.1471/22, 315/18 & CO 69/18

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2025:KER:94112

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE P.M.MANOJ

THURSDAY, THE 4TH DAY OF DECEMBER 2025 / 13TH AGRAHAYANA,

1947

MACA NO. 1471 OF 2022

AGAINST THE AWARD DATED 05.04.2017 IN OP(MV) NO.455 OF
2012 OF MOTOR ACCIDENT CLAIMS TRIBUNAL, THALASSERY

APPELLANTS/PETITIONERS 1 AND 2/LEGAL HEIR OF 3RD RESPONDENT:

- 1 SHOBA.M
AGED 58 YEARS
W/O MOHANAN(DECEASED), AGED 58 YEARS, NEAR
MAVICHERY TEMPLE, PAYYANUR, AMSOM, DESOM,
PAYYANUR .P.O, KANNUR DISTRICT, PIN - 670307
- 2 SHAMNA
AGED 38 YEARS
D/O MOHANAN(DECEASED), AGED 38 YEARS, NEAR
MAVICHERY TEMPLE, PAYYANUR, AMSOM, DESOM, PAYYANUR.
P.O, KANNUR DISTRICT, PIN - 670307
- 3 H
AGED 58 YEARS
D/O ROHINI, AGED 58 YEARS, RESIDING AT SAI JYOTHI,
EDAT.P.O, KUNHIMANAGALAM, KANNUR DISTRICT, 670309
(3RD PETITIONER IS THE LEGAL HEIR OF DECEASED 3RD
PETITIONER ROHINI WHO DIED ON 19.09.2020)

BY ADV SRI.T.V.JAYAKUMAR NAMBOODIRI

RESPONDENTS/RESPONDENTS:

- 1 ABDUL KAREEM

S/O MUHAMMED, AGED 41 YEARS, MAYAPPU KUZHI HOUSE,
PARAVOOR, PULIKKAL P.O, MALAPPURAM DISTRICT,
(DRIVER), PIN - 673637
MACA Nos.1471/22, 315/18 & CO 69/18

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- 2 ASHIQ, K.C.,
S/O. AHAMMAD HAJI, KUZHIKKANDANCHOLA HOUSE,
ATHANIKKAL, VALLUVAMBRAM.P.O, MALAPPURAM DISTRICT,
(R.C. OWNER), PIN - 673642
- 3 THE MANAGER,
THE ORIENTAL INSURANCE COMPANY LTD, JASEELA
COMPLEX,, BYPASS JUNCTION, NILAMBUR ROAD,
MANJERI.P.O, (POLICY NUMBER 442201/31/2011/5171).,
PIN - 676121

*ADDL.4 SREEDEVI

W/O.LATE MOHANACHANDRAN, AGED 53 YEARS, RESIDING AT
SREEKOVIL, PARAMESHWAR NAGAR, BEHIND M.E.S COLLEGE
OLAVAKKODE, PALAKKAD - 678009
(ADDITIONAL FORTH RESPONDENT IS IMPEADED, AS PER
THE ORDER DATED 21/02/2025 IN IA.2/2024 IN MACA
1471/2022)

BY ADVS.
SRI.S.K.AJAY KUMAR
SMT.ASHA BABU

THIS MOTOR ACCIDENT CLAIMS APPEAL HAVING BEEN FINALLY
HEARD ON 04.12.2025, ALONG WITH CO.69/2018, 315/2018, THE
COURT ON THE SAME DAY DELIVERED THE FOLLOWING:
MACA Nos.1471/22, 315/18 & CO 69/18

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IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE P.M.MANOJ

THURSDAY, THE 4TH DAY OF DECEMBER 2025 / 13TH AGRAHAYANA,

1947

CO NO. 69 OF 2018

AGAINST THE ORDER/JUDGMENT DATED 05.04.2017 IN
OP(MV)758/2016 OF THE MOTOR ACCIDENTS CLAIMS TRIBUNAL,
THALASSERY

CROSS OBJECTOR/RESPONDENT NO.1 IN APPEAL:

SREEDEVI
W/O LATE MOHANACHANDRAN, AGED 53 YEARS,
RESIDING AT SREEKOVIL, PARAMESH NAGAR,
BEHIND M.E.S COLLEGE, OLAVAKKODE, PALAKKAD

BY ADVS.
SMT.ASHA BABU
SMT.SAMEERA V.A.
SMT.NITHYA K.S.

RESPONDENTS/APELLANT/2ND RESPONDENT:

- 1 ORIENTAL INSURANCE CO.LTD.
JASEELA COMPLEX, BYPASS JUNCTION, NILAMBUR
ROAD, MANJERI-676121. REP. BY ITS ASSISTANT
MANAGER, ORIENTAL INSURANCE CO.LTD. ERNAKULAM.
- 2 ROHINI
W/O LATE SUKUMARAN, 82 YEARS, CHENNATTIL
HOUSE, MAVICHERRY, PAYANNOOR P.O, KANNUR-670307
MACA Nos.1471/22, 315/18 & CO 69/18

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- 3 SHOBA M
W/O. MOHANAN (DECEASED), NEAR MAVICHERRY TEMPLE,
PAYYANUR, AMSOM, DESOM, PAYYANUR P.O, KANNUR
DISTRICT.
- 4 ADDL R4 SHAMNA C.D,
AGED 38 YEARS
D/O MOHANACHANDRAN(DECEASED), NEAR MAVICHERRY
TEMPLE, PAYYANUR, DESOM PAYYANUR P.O, KANNUR
DISTRICT- 670307. (*IMPLEADED AS PER ORDER

Oriental Insurance Co. Ltd vs Sreedevi on 4 December, 2025
DATED 21/02/2025 IN CO 69/2018 IN MACA 315/2018)

BY ADV SRI.S.K.AJAY KUMAR

THIS CROSS OBJECTION/CROSS APPEAL HAVING BEEN FINALLY
HEARD ON 04.12.2025, ALONG WITH MACA.1471/2022 AND CONNECTED
CASES, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:
MACA Nos.1471/22, 315/18 & CO 69/18

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IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE P.M.MANOJ

THURSDAY, THE 4TH DAY OF DECEMBER 2025 / 13TH AGRAHAYANA,

1947

MACA NO. 315 OF 2018

AGAINST THE ORDER/JUDGMENT DATED 05.04.2017 IN OPMV
NO.758 OF 2016 OF MOTOR ACCIDENT CLAIMS TRIBUNAL , THALASSERY

APPELLANT/3RD RESPONDENT:

ORIENTAL INSURANCE CO. LTD.
JASEELA COMPLEX, BYPASS JUNCTION, NILAMBUR
ROAD,MANJERI - 676 121, REPRESENTED BY IT'S
ASSISTANT MANAGER, ORIENTAL INSURANCE
CO.LTD., ERNAKULAM.

BY ADV SRI.S.K.AJAY KUMAR

RESPONDENTS/CLAIMANT & 4TH RESPONDENT:

- 1 SREEDEVI
W/O.LATE MOHANACHANDRAN, SWASTHAM, RESIDING
ATSREEKOVIL, PARAMESH NAGAR, BEHIND MES
COLLEGE,OLAVAKKODE, PALAKKAD - 678 002.
- 2 ROHINI (DECEASED)
W/O.LATE SUKUMARAN, CHENNATTIL HOUSE,MAVICHERRY,

PAYYANNOOR P.O., KANNUR - 670 307. (ADDITIONAL NO. 3 TO 5 ARE IMPEADED)

3 LATHA GOVIND C
D/O ROHINI, AGED 58 YEARS, RESIDING AT SAI JYOTHI,
EDAT P .O. KUNHIMANGALAM, KANNUR DISTRICT- 670309.
MACA Nos.1471/22, 315/18 & CO 69/18

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4 SOBHA MOHANACHANDRAN
AGED 59 YEARS, RESIDING AT SEAROCK
EMPLOYEES, CHSPRANJIVAN NAGAR, NALLASOPARA
EAST, THANE, MAHARASHTRA, 401209.

5 SHAMNA
D/O MOHANA CHANDRAN , AGED 40 YEARS, RESIDING AT
SEAROCK EMPLOYEES CHSP PRANJIVAN NAGAR, MALLASOPARA
EAST, THANE MAHARASHTRA- 401209.
(IMPEADED AS ADDITIONAL RESPONDENTS NO. 3 TO 5 AS
PER ORDER DATED 18/07/2022 IN IA NO. 1/2022.

BY ADVS.
SRI.T.V.JAYAKUMAR NAMBOODIRI
SMT.ASHA BABU
SMT.SAMEERA V.A.
SMT.NITHYA K.S.

THIS MOTOR ACCIDENT CLAIMS APPEAL HAVING BEEN FINALLY
HEARD ON 04.12.2025, ALONG WITH MACA.1471/2022 AND CONNECTED
CASES, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:
MACA Nos.1471/22, 315/18 & CO 69/18

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JUDGMENT

Dated this the 4th day of December, 2025 M.A.C.A.Nos.315 of 2018, 1471 of 2022 and C.O.No.69 of 2018 are preferred against the award dated 05.04.2017 in OP(MV) No.455 of 2012 of the Motor Accidents Claims Tribunal (MACT) Thalasseri. OP(MV) No.455 of 2012 was filed before the MACT, Thalasseri, by persons claiming to be the wife, daughter and mother of the deceased whereas OP(MV) No.758 of 2016 was filed by another person claiming to be the wife of the deceased.

2. The short facts involved in this case are as follows:- The accident occurred on 23.04.2011 at 12 a.m., while the deceased was riding the motorcycle bearing number KL-14C/6021 from Palakkad Railway colony to Olavakkod. When he reached a place called Thanavu, 1st respondent drove the bus bearing number KL-10Z/3758 in a rash and negligent manner and hit the motorcycle ridden by the deceased. As a result, he sustained severe injuries and died on the way to the hospital. At the time of his death, the deceased was an ayurveda parambarya vydiar earning Rs.25000/- per month. The persons claiming to be his wife, daughter and mother preferred OP(MV) No.455 of 2012 claiming MACA Nos.1471/22, 315/18 & CO 69/18 2025:KER:94112 compensation of Rs.10 Lakhs. Another person claiming to be the wife of the deceased preferred OP(MV) No.623 of 2014 before the MACT, Palakkad. Later, the said case was transferred to MACT, Thalasseri on the basis of the order of this Court dated 24.06.2016 in Tr.P.C.No.114 of 2016 and was renumbered as OP(MV) No.758 of 2016. The claim raised by the claimant therein was for Rs.7,50,000/- towards the compensation.

3. Notice was served on the respondents in both cases. The RC owner of the vehicle, who is the 1st respondent in OP(MV) No.758 of 2016, filed a written statement, whereas the driver, the 2nd respondent therein, was set exparte. The 3rd respondent in both the cases filed a written statement and an additional written statement, denying liability on the ground that the accident occurred due to the negligence of the deceased himself. The 4th respondent in OP(MV) No.758 of 2016 also filed a written statement admitting that she is the mother of the deceased and also contended that the claimant Shoba in OP(MV) No.455 of 2012 and Shamna are the legally wedded wife and daughter of the deceased. It was also contended therein that both of them resided with her and are entitled to get compensation. On the basis of these facts, the Tribunal has framed the following issues:

MACA Nos.1471/22, 315/18 & CO 69/18 2025:KER:94112 "1. Who are the legal representatives of deceased Mohanachandran?

2. What is the reason for the accident?

3. Whether the deceased died as a result of the injury sustained in the accident?

4. Whether the petitioners are entitled to get compensation and if so, who is liable to pay the same?

5. If issue Nos.1 to 3 are decided in favour of the petitioners, what should be the quantum?

6. Reliefs and costs?"

4. Exts.A1 to A18 were produced by the claimant in OP(MV) No.758 of 2016 and Exts.X1 and X2 documents were marked, whereas the claimants in OP(MV) No.455 of 2012 did not produce any document nor examine any witnesses. A joint trial was conducted by the Tribunal, which found that neither the claimants nor their Counsel in OP(MV) No.455 of 2012 appeared before the Tribunal and they did not adduce any evidence to show that they were the wife and daughter of the deceased. On the basis of the documents adduced by the claimant in OP(MV) No.758 of 2016, the Tribunal

came to the conclusion that the petitioner therein is the legally wedded wife and compensation was granted to her as well as the 4th respondent therein and OP(MV) No.455 of 2012 was dismissed.

MACA Nos.1471/22, 315/18 & CO 69/18 2025:KER:94112

5. Being aggrieved by the award in OP(MV) No.758 of 2016, the 3rd respondent Insurance Company in both the cases preferred MACA No.315 of 2018. The claimant in OP(MV) No.758 of 2016 preferred cross-objection No.69 of 2018 and the claimants in OP(MV) No.455 of 2012 preferred MACA No.1471 of 2022.

6. Now the question before this Court is whether the Tribunal was justified in allowing the claim in favour of the petitioner in OP(MV) No.758 of 2016 and the 4th respondent therein, while dismissing the claim preferred by the petitioners in OP(MV) No.455 of 2012.

7. To decide the first issue, i.e., whether the claimant in OP(MV) No.758 of 2016 is the legal representative of the deceased, the Tribunal considered the documents marked as Exts.A1 to A18 and Exts.X1 and X2, as well as the testimony of PW1 and PW2. Based on the evidence, the Tribunal concluded that the petitioner in OP(MV) No.758 of 2016 is the legally wedded wife, who was residing with the deceased at the time of his death. In the absence of any material evidence, it was found that the petitioners 1 and 2 in OP(MV) No.455 of 2012 are not the legal representatives of the deceased. The Tribunal also found that being the mother of the deceased, the 4th respondent in OP(MV) No.758 of 2016, who is the 3rd petitioner in OP(MV) No.455 of 2012, is entitled to get MACA Nos.1471/22, 315/18 & CO 69/18 2025:KER:94112 compensation. Going by the available documents before the Tribunal, the Tribunal is justified in its conclusion. Moreover, the appellants in MACA No.1471 of 2022 did not take any efforts to contest the matter.

8. On the other hand, the contention by the 3rd respondent is with respect to the quantification of the amount by the Tribunal. It is contended by the appellant in MACA No.315 of 2018 that the Tribunal relied on Rajesh and Others vs. Rajbir Singh and Others (2013 ACJ 1403), wherein the income of the deceased at the time of death along with 50% interest was taken for fixing compensation. Thereby the Court notionally fixed the monthly income of the deceased as Rs.5,750/- and came to a conclusion that the annual notional income is Rs.69,000/-. At the time of death, the deceased was aged 58 years. According to the appellant, the said conclusion of by the Tribunal is against the dictum laid down in National Insurance Company Ltd. v. Pranay Sethi & Ors [2017 (4) KLT 662 (SC)].

9. Whereas the appellants in MACA No.1471 of 2022 have produced certain documents, including the Birth Certificate of the 2nd petitioner in OP(MV) No.455 of 2012, which shows that the deceased was her father and the legal heirship certificate produced also would show that the petitioners are the wife, daughter and MACA Nos.1471/22, 315/18 & CO 69/18 2025:KER:94112 mother of the deceased. Certain photographs were also produced to prove the marriage between the deceased and the first petitioner therein.

10. I have heard Sri.S.K.Ajay Kumar, the learned counsel for the appellant in MACA No.315 of 2018, Sri.T.V.Jayakumar Namboodiri, the learned counsel for the appellants in MACA No.1471 of 2022 and Smt.Asha Babu, the learned counsel for the cross objector No. 69 of 2018 in MACA 315 of 2018.

11. Based on the foregoing averments, it is evident that the Tribunal evaluated the documents on the basis of the deposition and the materials produced before it, and consequently came to the conclusion that the cross-objector is the legal heir of the deceased. However, the Tribunal did not have an opportunity to examine the documents that were produced before this Court in MACA No. 1471 of 2022, as the appellants in that appeal had not taken steps to follow up the proceedings before the Tribunal. However, the materials produced before this Court, as well as the contention raised under Section 5 of the Hindu Marriage Act, involve issues that ought to be considered by the Tribunal prior to determining the legal heirs of the deceased. This is a crucial question to be answered by the Tribunal with respect to the status MACA Nos.1471/22, 315/18 & CO 69/18 2025:KER:94112 of the appellants in MACA No.1471 of 2022 or the petitioner in OP(MV) No.455 of 2012 which was dismissed by the Tribunal.

12. Moreover, the contention raised by the appellant in MACA No. 315 of 2018 regarding the quantification of the amount in the light of Rajesh and Others (supra) is also a matter that must be reconsidered by the Tribunal in view of Pranay Sethi (supra). Accordingly, I deem it appropriate to set aside the order of the Tribunal dated 05.04.2017, and a fresh award shall be passed on the basis of the contentions noted above. This exercise shall be completed within a period of six months from the date of receipt of a certified copy of this judgment. Until a decision is rendered by the Tribunal, the amount already deposited shall not be disbursed.

Accordingly, the appeals and cross objection are disposed of as above.

Sd/-

P.M.MANOJ JUDGE skp/ss